

SENATE No. 961

The Commonwealth of Massachusetts

PRESENTED BY:

Brendan P. Crighton

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act providing upstream homelessness prevention assistance to families, youth, and adults.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	
<i>Brendan P. Crighton</i>	<i>Third Essex</i>	
<i>John F. Keenan</i>	<i>Norfolk and Plymouth</i>	<i>2/28/2025</i>
<i>Mike Connolly</i>	<i>26th Middlesex</i>	<i>4/15/2025</i>
<i>Joanne M. Comerford</i>	<i>Hampshire, Franklin and Worcester</i>	<i>4/15/2025</i>
<i>Paul W. Mark</i>	<i>Berkshire, Hampden, Franklin and Hampshire</i>	<i>7/23/2025</i>
<i>James B. Eldridge</i>	<i>Middlesex and Worcester</i>	<i>9/15/2025</i>

SENATE No. 961

By Mr. Crighton, a petition (accompanied by bill, Senate, No. 961) of Brendan P. Crighton and John F. Keenan for legislation to provide upstream homelessness prevention assistance to families, youth, and adults. Housing.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE SENATE, NO. 856 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act providing upstream homelessness prevention assistance to families, youth, and adults.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Chapter 23B of the General Laws is hereby amended by inserting after section 30 the
2 following section:-

3 Section 31. (a) Subject to appropriation, the executive office of housing and livable
4 communities shall administer the residential assistance for families in transition homelessness
5 prevention program for households whose incomes are at or below 50 per cent of the area
6 median income and who are at risk of homelessness, eviction, loss of housing subsidy,
7 foreclosure or utility shut-off within the next 12 months. For the purposes of this program, to
8 receive cash benefits or other services, it is not necessary for a household to have received a
9 shut-off notice from a utility company, notice to quit or summary process summons and
10 complaint, or otherwise be subject to the summary process pursuant to chapter 239. Risk of

11 eviction, loss of housing subsidy, foreclosure and utility shut-off may be determined by certified
12 statements from the landlord, subsidy provider, mortgage holder, utility company, or the
13 applicant household verifying outstanding rent, mortgage or utility costs and the household's
14 current inability to pay said charges. The executive office shall ensure that not less than 50 per
15 cent of the funds be provided to households with incomes not greater than 30 per cent of area
16 median income. Eligible households shall include, but not be limited to, families with children
17 under the age of 21, elders, persons with disabilities, and unaccompanied youth. Services and
18 cash benefits under the program shall be made available to households for the prevention of the
19 loss of public, subsidized, or unsubsidized housing. The executive office shall not impose any
20 additional access or benefit restrictions on households residing in public or subsidized housing.
21 Cash benefits for arrearages shall not exceed the actual liability. Eligible households may receive
22 benefits for short-term rental or utility payments to offset future costs, to pay for other expenses
23 that otherwise would leave the household at risk of homelessness, and to pay for broker fees that
24 otherwise would be the responsibility of the tenant. Funds from this program shall be available to
25 cover up to 12 months in combined rental arrearage and forward rent payments for eligible
26 households. The executive office and administering agencies shall make direct payments
27 available to tenants or subtenants whose landlords are unresponsive or refuse payments. In
28 administering the program, the executive office shall coordinate with the department of
29 transitional assistance, member agencies and offices of the Massachusetts interagency council on
30 housing and homelessness or successor body, and the agencies contracted to administer the
31 residential assistance for families in transition program on behalf of eligible households served
32 by those agencies and offices to streamline the application process, provide additional support
33 services, and better promote upstream homelessness prevention and housing stability.

(b) The executive office shall annually, on or before December 31, issue a report on the rental, mortgage, and utility assistance program created by this section. The report shall be submitted to the house and senate committees on ways and means, the joint committee on housing, and the clerks of the house of representatives and the senate. The report also shall be posted online in a timely manner in a searchable format so that such information is available to the public. The report shall include but not be limited to the following information:

(i) the referral source for each household and number of households referred by said source;

(ii) the number of applications requested, the number of applications completed, the number of applications approved;

(iii) the number of applications rejected and the reasons for denial;

(iv) the household income and demographic information for each qualifying household and its members. This information shall be provided by zip code and cumulatively;

(v) the monthly rent or mortgage liability for each qualifying household and the amount of each arrearage payment; and

(vi) the housing status of each qualifying household at 6, 12, and 24 months after receipt of services or cash benefits.